

Gajanand Sharma v. State of U.P.

Allahabad High Court · Division Bench · 6 August 2014 · WRIT - C No. 40410 of 2014 · **Writ disposed of; petitioner to file a proper Clause 4.4 application; Executive Engineer to decide after notice to the landlord.**

HEADNOTE

A tenant seeking a fresh electricity connection after disconnection is entitled only if he fulfils Clause 4.4 of the Electricity Supply Code, 2005. Occupancy rights remain governed by a pending landlord-tenant suit. The writ was disposed of directing a proper application; the Executive Engineer was to decide after putting the landlord to notice, preferably within three months.

FACTUAL SUMMARY

The petitioner claimed to be tenant of premises of which respondent no.7 was the landlord. The electricity connection had been disconnected and he had applied for a fresh connection. A landlord-tenant suit (Suit No. 51 of 2002) was already pending. Counsel for the electricity department submitted that the petitioner's application (Annexure 7) did not appear to be in the prescribed proforma. He sought a writ directing a fresh connection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

tenant/occupier entitlement to fresh connection

HOLDING

A tenant seeking a fresh electricity connection after disconnection is entitled only if he fulfils the criteria in Clause 4.4 of the Electricity Supply Code, 2005. Occupancy rights remain for the pending landlord-tenant suit. The application must be in the prescribed form; the Executive Engineer is to decide after putting the landlord to notice. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER FULFILLED CLAUSE 4.4 OR WAS ENTITLED TO A CONNECTION ON MERITS

Left to the Executive Engineer after a proper application and notice to the landlord ¶ 1

NOT DECIDED — RIGHTS OF THE PARTIES TO OCCUPY THE PREMISES

Left to pending Suit No. 51 of 2002 ¶ 1